

MANILA LAW COLLEGE
BASIC LEGAL AND JUDICIAL ETHICS
Tuesday, 5:30 pm – 8:30 pm
A.Y. 2026-2027 / Term 2
Atty. Leny Santos Sanchez

SYLLABUS
(**1st Part**)

COURSE DESCRIPTION

1. **LEGAL ETHICS**- the course covers the duties that a lawyer owes to the public, to the court, to his or her clients, and to his or her colleagues in the legal profession as embodied in the CPRA, the Constitution, the Rules of Court, laws, and jurisprudence.
2. **JUDICIAL ETHICS**- the course covers the proper conduct to be observed by the members of the judiciary in resolving or deciding legal controversies.

COURSE OBJECTIVES

1. To be able to appreciate the value of the legal profession;
2. To develop a clear comprehension of the meaning and significance of justice, fairness, candor, honesty, integrity, professionalism, and respect for the rule of law, and the implication of the foregoing in adhering to ethical standards and practices;
3. To equip the law students with various materials that will guide them in fully understanding the basic principles of Legal and Judicial Ethics.

COURSE REQUIREMENTS

1. Obtain a passing grade in the class standing, which includes oral recitation and group activities (research, case digest, group reporting);
2. Obtain passing grades in the midterm and final examinations.

GRADING SYSTEM

PASSING GRADE: 3.00 or 75%

- CLASS STANDING: 25%(recit, reporting, and activities)
- MIDTERM EXAM: 35%
- FINAL EXAM : 40%

ATTENDANCE: 6 Absences: automatic “FAILED” mark

NOTES FOR THE CLASS BEADLE

- a. Kindly check the attendance at 6:00 pm.
- b. Assign a student to say the prayer every meeting.

LEARNING ACTIVITIES

1. SOCRATIC METHOD OF LEARNING – a form of cooperative argumentative dialogue between individuals, based on asking and answering questions to **stimulate critical thinking and to draw out ideas and underlying presumptions.**

CLASS POLICIES

1. Zoom Class Attire: corporate or smart casual.
2. Camera ON.
3. Put your AUDIO ON MUTE unless you are being asked to speak/recite.
4. In reciting cases, limit the discussion to the following:
 - a. **Relevant facts (brief discussion only)**
 - b. **Pertinent issue/s**
 - c. **Legal basis**
 - d. **Ruling of the Supreme Court in relation to the assigned topic/s);**
5. Quizzes may be given unannounced.
6. Respect each student's individuality, religion, political views, sexual orientation, and beliefs.
7. We will try to extensively cover the assigned topics every meeting. **Please note that the syllabus will not be adjusted, notwithstanding class suspensions.** The coverage for the midterm and final examinations will remain unchanged, even if some of the assigned topics have not been fully covered or discussed before the respective examination dates.

REFERENCES

- ✓ A.M. No. 22–09-01-SCL Code of Professional Responsibility and Accountability, April 11, 2023;
- ✓ AM 03-05-01-SC: New Code of Judicial Conduct for the Philippine Judiciary;
- ✓ The Revised Rules of Court;
- ✓ Book of Dean Duka or any CPRA book with annotations.

COURSE OUTLINE

- I. Preamble of A.M. No. 22-09-01-SC.
- II. New Lawyer's Oath (*Memorize; random recitation*)
- III. The Code of Professional Responsibility and Accountability
(*Read in advance for better understanding of the course outline*)

WEEK 1

1. Class introduction

WEEK 2 (recit)

Topic: Efficient and effective legal practice

1. Request of National Committee on Legal Aid to Exempt Legal Aid Clients from Paying Filing, Docket and Other Fees, A.M. No. 08-11-7-SC, August 28, 2009;
2. Request of the Public Attorney's Office to Delete Section 22, Canon III of the Proposed CPRA, A.M. No. 23-05-05-SC.

Topics: Improper considerations, merit-based practice, non-interference, duty to uphold the law

3. Rodica v. Atty. Lazaro, AC No. 9259, August 23, 2012;
4. Bengco v. Atty. Bernardo, A.C. No. 6368, June 13, 2012;
6. Burbe v. Atty. Magulta, AC No. 99-634, June 10, 2002;
7. Atty. Khan v. Atty- Simbillo, A.C. No. 5299, August 19, 2003;
8. Velasco v. Atty. Causing, A.C. No. 12883 (Formerly CBD Case No. 16-5016), March 02, 2021;
9. Ignacio v. Alviar – A.C. No. 11482 (2017)
10. Re: Show Cause Order in the Decision Dated May 11, 2018 In G.R. No. 237428 (Republic of The Philippines, Represented by Solicitor General Jose C, Calida v. Maria Lourdes P.A. Sereno), A.M. No. 18-06-01- SC, July 17, 2018;
11. Manalang v. Atty. Buendia, A.C. No. 12079, November 10, 2020.
12. Sucgang-Perez v. Sore-Romano – A.C. No. 13959 (2024) (Formerly CBD Case No. 22-6628)

WEEK 3 (recit)

A lawyer shall, at all times, act with propriety and maintain the appearance of propriety in personal and professional dealings, observe honesty, respect and courtesy, and uphold the dignity of the legal profession consistent with the highest standards of ethical behavior.

Topics: Duty of lawyers to uphold the law; grossly immoral conduct; gross misconduct; moral turpitude.

13. Re: Lorenzo "Larry" Gadon, A.C. No. 13521, June 27, 2023
14. Ventura vs. Atty. Samson, A.C. No. 9608, November 27, 2012
15. Guevarra vs. Atty. Eala, A.C. No. 7136, August 1, 2007
16. Magayanes v. Vasquez, [A.M. No. MTJ-23-014 (Formerly JIB FPI No. 21-024-MTJ), April 11, 2024]
17. Linsangan v. Atty. Nicomedes Tolentino, A.C. No. 6672, September 4, 2009

Topics: Practice of law; improper practice; unlawful, dishonest, deceitful conduct

18. Philippine Lawyers Association v. Agrava, G.R. No. L-12426, February 16, 1959
19. Cayetano v. Monsod, G.R. No. 100113, September 3, 1991
20. Manalang v. Atty. Cristina Benosa Buendia, A.C_ No. 12079, November 10, 2020
21. David v. Atty. Diosdado M. Rongcal, Atty. Ildefonso Tario, Atty. Mark John M.

- Soriquez, Atty Emiliano S. Pomer, Atty. Marilet Santos-Layug, And Atty. Danny F. villanueva, June 23, 2020
22. Genato v. Atty. Eligio P. Mallari, A.C. No. 12486, October 15, 2079
23. Atty. Honesto Ancheta Cabarroguis v. Atty. Danilo A Basa, A.C. No. 8789, March 1, 2020
24. Query of Atty. Karen M. Silverio-Buffe, Former Clerk Of Court- Branch 81, Romblon, Romblon On the Prohibition from Engaging in the Private Practice of Law, AM, No. 08-6-352- RTC, August 19, 2009

Topic: Fiduciary Relationship

25. Gabucan v. Atty. Florencio A Nanido, Jr. AC. No. 12019, September 03, 2019
26. Sison v. Atty. Lourdes Philina B. Dumlao, April 28, 2021- Start of Atty. - client relation
27. Land Bank of the Philippines v. Pamintuan, October 25, 2005-Authority to appear
28. Mahunot v. Atty. Lord M. Marapao, A.C. No. 10297. March 09, 2022- groundless suits

Topic: Calling client's attention regarding fraudulent act

29. Tionsgon v. Atty. Michael Flores, September 01, 2020

Topic: Conflict of interest

30. Palma v. Maduramente (A.C. No. 13995) (2024)
31. Buenavista Properties, Inc. v. Deloria (A.C. No. 12160) (2018)
32. Legaspi v. Gonzales (A.C. No. 12076) (2020)

WEEK 4 (recit)

Topics: Ambulance Chasing; advertising legal services

33. Atty. Ulep v. Legal Clinic, Bar Matter No. 553. June 17, 1993
34. Khan, Jr. v. Simbillo , A.C. No. 5299, August 19, 2003
35. Linsangan v. Atty. Nicomedes Tolentino, A.C. No. 6672, September 4, 2009
36. Villatuya v. Tabalingcos , A.C. No. 6622, July 10, 2012
37. Palencia v. Linsangan, et al. ,A.C. No. 10557, July 10, 2018
38. Zamora v. Gallanosa , A.C. No. 10738, September 14, 2020
39. Rebarter v. Villa, A.C. No. 12516, August 4, 2025

Topic: Barratry

40. Office of the Cout Administrator v. Judge Ruiz, A.M. No. RTJ-13-2361 (Formerly OCA IPI No. 13-4144-RTJ) February 02,2016
41. So v. Lee, B.M. No. 3288, April 10, 2019
42. Roque v. Intermediate Appellate Court, G.R. No. L-66935 November 11, 1985

Topic: Self-laudatory statements

43. Atty. Pedro Aguirre v. Atty. Crispin Reyes, January 08, 2020

Topic: Propriety of gift giving / solicitation

44. Mabini v. Raga, A.M. No P-06-2150, June 21, 2006

Topic: Subjudice Rule

45. Re: Show Cause Order in the Decision Dated May 11, 2018 in G.R. No. 237428 (Republic of the Philippines, Represented by Solicitor General Jose C. Calida V. Maria Lourdes P. A. Sereno), July 17, 2018

46. ABS-CBN Corporation, et al. v. Andal Ampatuan, Jr., G.R. No. 227004, April 25, 2023

47. Bruselas, Jr. v. Mallari, A.C. No. 9683, April 18, 2023

48. Domingo, et al. v. Badoy-Partosa, A.M. No. 22-09-16-SC, August 2023

Topic: Rule on Inhibition

49. Ariel "Aga" Muhlach v. Executive Judge Ma. Angela Acompanado-Arroyo, August 26, 2015, A.M. No. RTJ-15-2439 (Formerly: OCA I.P.I. No. 12-3989-RTJ)

50. Bellosilo v. The Board of Governors of the Integrated Bar of the Philippines, G.R. No. 126980, March 31, 2006- Fraternity Membership

WEEK 5 (recit)

Topic: Forum Shopping

51. Heirs of Sotto v. Palicte, G.R. No. 159691, February 17, 2014

52. Crisostomo, et al. v. Nazareno, A.C. No. 6677 (2014)

Topic: Dropping a disbarred lawyer from the firm name

53. Kimteng et al. vs. Atty. Young, et al., GR No 210554, August 5, 2015

54. Dural v. Atty. Carlo "Bong Carag, January 16, 2023

Topic: Prohibitions on lawyers appointed to public office

55. Ziga v. Judge Ramon Areola, A.M. No. MTJ-99-1203, June 10, 2003

56. Rosca v. Delmendo (A.C. No. 11795, November 21, 2023

Topic: Public officials who cannot practice law

57. Maderada v. Judge Mediodea, A.M. No. MTJ-02-1459, October 14, 2003

58. Catu v. Atty. Rellosa, A.C. No. 5738, February 19, 2008 - Civil Service Employees practicing

Topic: Lawyers in government service and formerly in the government service

59. Judge Suzanne D. Cobarubias-Nabaza v. Atty. Lavandero, March 14, 2022

60. Trovela v. Robles, A.C. No. 11550, June 04, 2018

61. Query of Atty. Karen M. Silverio-Buffe, A.M. No. 08-6-352-RTC, August 19, 2009

62. Penalties Under R.A. No. 3019 and R.A. 6713 Section 32.

Topic: Lawyers in the academe

- 63. Pimentel v. Legal Education Board, G.R. No. 230642, September 10, 2019
- 64. Re: Anonymous Complaint Against Atty. Cresencio P Co Untian, Jr., April 10, 2019
- 65. Re: Letter of the UP Law Faculty Entitled "Restoring Integrity: A Statement by the Faculty of the Misrepresentation in the Supreme Court," A.M. No. 10-10-4-SC, March 08, 2011, University of the Philippines College of Law on the Allegations of Plagiarism

WEEK 6 (recit)

Topic: Duty to encourage settlement

- 66. Sevilla v. Atty. Marcelo C. Millo, A.C. No. 10697, March 25, 2019
- 67. Viesca v. Gilinsky, G.R. No. 171698, July 4, 2007

Topic: Responsible use of social media

- 68. Re: Disturbing Social Media Posts of Lawyers/Law Professors — A.M. No. 21-06-20-SC (2023)
- 69. In Re: Atty. Lorenzo G. Gadon's Viral Video Against Raissa Robles — A.C. No. 13521 (2023)
- 70. ABS-CBN Corporation, et al. v. Andalampatuan, Jr. — G.R. No. 227004 (2023)
- 71. Serrano v. Cruz-Angeles, et al. — A.C. No. 10985 (2024)
- 72. Request of the Public Attorney's Office to Delete Section 22, Canon III of the Proposed Code of Professional Responsibility and Accountability — A.M. No. 23-05-05-SC (2024)

Topic: Prohibition against dating, romantic relationship, or sexual relationship with a client

- 73. Inocente v. St. Vincent Foundation for Children and Aging, Inc., et al. G.R. No. 202621, (2016)
- 74. Floreswinda V. Juni v. Atty. Mario T. Juni, A.C. No. 11599 (2021)
- 75. Hosoya v. Contado, A.C. No. 10731 (2021)
- 76. Venzon v. Peleo III, A.C. No. 9354 (2019)

CUT-OFF for Midterm Exam coverage
2nd Part of Syllabus to follow

Sample digest:

Case Title: GR No., Date

Brief Facts:

In 2011, Manalang engaged the services of Atty. Buendia for an annulment case. Atty. Buendia informed Manalang that annulment proceedings usually last from one to two years, but with a fee of 275,000.00 plus documentation and out of-pocket expenses, she can hasten and shorten Manalang's case to one year or less. Notwithstanding the staggered receipt of fees by Atty. Buendia, the case was never filed. To mislead Manalang into believing that the case had been resolved, Atty. Buendia presented a fabricated court decision and a certificate of finality. Manalang, however, found several falsities in the purported court decision, prompting him to investigate and consequently discover Atty. Buendia's deception. For her defense, Atty. Buendia alleged that she only agreed to be an intermediary between Manalang and another lawyer who practices in Cagayan, but admitted to receiving payments from the latter, allegedly as an intermediary and not as his (Manalang) lawyer.

Issue/s:

Applicable Doctrine/s:

Court's Disposition: